

Vijendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 September 2021 · Writ-C No. 17922 of 2021 · **Writ disposed; petitioner relegated to Clause 6.5 to dispute the arrears bill.**

HEADNOTE

Allahabad High Court declined to examine the correctness of a Dakshinanchal Vidyut Vitran Nigam Ltd. arrears bill in writ, holding that disputed questions of fact on billing are to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner did not dispute that alternative remedy. If a Clause 6.5 complaint is made, it is to be decided on merits, preferably within four weeks.

FACTUAL SUMMARY

Vijendra Singh challenged a 1 November 2020 notice issued by Dakshinanchal Vidyut Vitran Nigam Ltd. The notice was in fact a bill demanding arrears of electricity dues and warning that supply would be disconnected if unpaid. He contended the arrears were wholly incorrect because his tubewell had not been run since 2014. The licensee submitted that correctness of the bill could be disputed under Clause 6.5 of the U.P. Electricity Supply Code, 2005, which the petitioner's counsel did not dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

A writ petition questioning the correctness of an electricity arrears bill, including a threat of disconnection for non-payment, is not decided on disputed questions of fact. The consumer is to raise the billing dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Where such a dispute is raised, it shall be decided on merits, expeditiously, preferably within four weeks of receipt of the complaint with a copy of the order. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ challenging correctness of a DVNNL arrears bill with disconnection notice was not decided on facts; petitioner permitted to raise the dispute under Clause 6.5. ¶ 3-4

billing-dispute-question-of-fact-executive-engineer-clause-6.5 Court expressly refrained from deciding disputed questions of fact on whether the tubewell arrears bill was correct, remitting the dispute to Clause 6.5. ¶ 4

clause-6.5-statutory-remedy-disputed-bill Correctness of the 01.11.2020 electricity bill is to be determined under the Clause 6.5 statutory remedy, with a direction to decide on merits within four weeks if a complaint is filed. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 01.11.2020 ARREARS BILL AND WHETHER THE PETITIONER'S TUBEWELL HAD NOT BEEN RUN SINCE 2014

Court refrained from deciding disputed questions of fact and remitted the billing dispute to Clause 6.5. ¶ 4